Privacy Statement

Welcome to the UC San Diego Health Privacy Notice! This Privacy Notice explains how the UC San Diego Health System ("**UC San Diego Health**", "**UCSDH**", "**we**", "**us**" or "**our**") collects, uses, discloses, and otherwise processes personal information (as defined below) in connection with our website, health.ucsd.edu, and other websites we own and operate that link to this Privacy Notice (the "**Sites**"), our mobile apps, and the related content, platform, services, products, and other functionality offered on or through our services (collectively, the "**Services**"). It does not address our privacy practices relating to UC San Diego Health employees and other personnel.

UC San Diego Health is the controller of the personal information we hold about you in connection with your use of the Services. This means that we determine and are responsible for how your personal information is used.

This Privacy Notice does not apply to the collection, use, and disclosure of your protected health information. Please see our **HIPAA Notice of Privacy Practices** for more information about how UC San Diego Health collects, uses, and discloses your protected health information under the Health Insurance Portability and Accountability Act of 1996 (HIPAA)].

When we collect personal information that is part of a student or an applicant's educational record ("**Student Data**"), we collect, use, store, and otherwise process such information in accordance with the Family Educational Rights and Privacy Act (FERPA). To the extent that our processing practices in connection with Student Data differ from this Privacy Notice, the practices described in this Privacy Notice will not apply.

I. What is Personal Information?

When we use the term "**personal information**" in this Privacy Notice, we mean any data or information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular natural person or household or any other data or information that constitutes "personal data", "personal information," or "personally identifiable information." As noted above, it does not include protected health information under HIPAA.

II. Our Collection and Use of Personal Information

We collect personal information in a variety of ways. For example, you may provide us your personal information when you contact us or send us messages, conduct a search on our Sites, subscribe to our mailing lists, newsletters or other forms of marketing communications, submit a job application, participate in a survey, make a purchase at our gift shop, or use some other feature of our Service.

We may link or combine your activities and information collected from you on our websites and mobile apps with information we receive from third parties, as well as information we collect automatically through tracking technologies (defined below). This allows us to provide you with a personalized experience regardless of how you interact with us.

Personal Information Collected from You

We may collect the following categories personal information submitted to us by individuals through the Services:

- **Contact Information,** including first and last name, email address, your country or region and communication preferences. We use this information to fulfill your request, to communicate with you directly, and to send you marketing communications in accordance with your preferences.
- **Payment Information**. If you make a purchase at one of our gift shops or register for one of our Events or Conferences, we may collect payment information in order to complete your transaction. Please note that we use third party payment processors to process credit card payments made to us. As such, we do not retain any personally identifiable financial information in connection with credit card payments, such as credit card numbers. Rather, all such information is provided directly by you to our third-party processor. The payment processor's use of your personal information is governed by their privacy notice.
- **Inquiry and Communications Information**, including information provided in custom messages sent through the forms, in chat messages, to one of our email addresses, or via phone. We use this information to investigate and respond to your inquiries, and to communicate with you, to enhance the Services we offer to our users and to manage and grow our organization.
- **Newsletter and Marketing Emails**, including email address and applicable interests and communication preferences. We use this information to manage our communications with you and send publications highlighting the latest findings in medicine, research and wellness to support healthy active living. If you wish to stop receiving email messages from us, simply click the "unsubscribe link" provided at the bottom of the email communication. Note that you cannot unsubscribe from certain services-related email communications (e.g., account verification, technical or legal notices).
- **Survey Information**, including information provided when you provide information included in any questions submitted through surveys or content of any testimonials. We use this information to administer and facilitate the Services, to respond to your submission, to communicate with you, to conduct market research, inform our marketing and advertising activities and improve and grow our business.
- **Events and Conferences Registration Information,** including any information provided though the registration form.
- **Feedback Information.** We may collect feedback you provide relating to our Services. We use this information to communicate with you, to conduct market research, inform our marketing and advertising activities and improve and grow our business.
- **Employment Application Information**, including your contact and demographic information, educational and work history, employment interests, information obtained during interviews and any other information you choose to provide, if you apply for employment.

Information Automatically Collected

As is true of many digital properties, we and our third-party partners may automatically collect information you provide to us and information about how you access and use the Services when visiting or interacting with our Services, such as the list below and in the sub-sections here:

- **Log Data**, including internet protocol (IP) address, operating system, device type and version, browser type and version, browser id, the URL entered and the referring page/campaign, date/time of visit, other user agent string data, the time spent on our Services, how frequently you access the service, the Site you are going to when you leave the Services, and any errors that may occur during the visit to our Services). Log data may overlap with the other categories of data below.
- **Analytics data**, including the electronic path you take to our services, through our services and when exiting our services, UTM source, as well as your usage and activity on our services, such as the time zone, activity information (first and last active date and time), usage history (flows created, campaigns scheduled, emails opened, total log-ins) as well as the pages, links, objects, services you view, click or otherwise interact with, including videos you watch and other similar actions. We may also use third-party tools to collect information you provide to us or information about how you use the Service and may record your mouse movements, scrolling, clicks and keystroke activity on the Service and other browsing, search or purchasing behavior. These tools may also record information you enter when you interact with our Service or engage in chat features through our Service.
- **Location data**, such as general location information we derive from your IP address.

  We and our third-party providers may use (i) cookies or small data files that are stored on an individual's computer and (ii) other, related technologies, such as web beacons, pixels, embedded scripts, location-identifying technologies and logging technologies (collectively, "cookies") to automatically collect this information. We may also use this information to distinguish you from other users of our Services. This helps us monitor and analyze how you use and interact with our Services. It also helps us and our partners to determine products and services that may be of interest to you.

  For more information about these practices and your choices regarding cookies, please see the **Cookie Notice.**

  Personal Information from Third Parties

  We also obtain personal information from third parties; which we often combine with personal information we collect either automatically or directly from an individual.

  We may receive the same categories of personal information as described above from the following third parties:

- **Within UC San Diego Health:** We may receive personal information from other hospitals or primary care networks that are part of UC San Diego Health and the UC San Diego Health Affiliated Network.
- **Social Media**: When an individual interacts with our Services through various social media networks, such as when someone "Likes" us on Facebook or follows us, comments, or shares our content on Facebook, Twitter, or other social networks, we may receive some information about individuals that they permit the social network to share with third parties. The data we receive is dependent upon an individual's privacy settings with the social network and may include certain profile information. We use this information to operate, maintain, and provide to you the features and functionality of the Service, as well as to communicate directly with you, such as to send you email messages about products and services that may be of interest to you.
- **Service Providers**: Our service providers that perform services solely on our behalf, such as survey and marketing providers and payment processors, collect personal information and often share some or all of this information with us. The information may include contact information, demographic information, transaction information, and information about your communications and related activities. We may use this information to administer and facilitate our Services and our marketing activities.
- **Community Partners**: We may receive your personal information, such as name and email address, from our community partners through which we may offer events, programs, or services that contribute to improving the lives and livelihoods of our communities.
- **Other Sources**: We may also collect Personal Information about individuals that we do not otherwise have from, for example, publicly available sources, third-party data providers, or through transactions such as mergers and acquisitions. We use this information to operate, maintain, and provide to you the features and functionality of the Service, as well as to communicate directly with you, such as to send you email messages about products and services that may be of interest to you.

Through the provision of our Services, we may also process anonymous and otherwise deidentified information that cannot reasonably be used to infer information about, or otherwise be linked to, a particular consumer or household. UC San Diego Health commits to maintain and use the information in deidentified form and will not attempt to reidentify the information, except in instances where necessary for determining whether the deidentification process used by UC San Diego Health satisfies the requirements under applicable law.

Additional Uses of Personal Information

We may use personal information we collect to:

- Fulfill or meet the reason the information was provided, such as to fulfill our contractual obligations, to deliver the Services you have requested and to process transactions;
- Manage our organization and its day-to-day operations;
- Register you for and provide you access to events and conferences;
- Communicate with individuals, including via email, social media and/or telephone calls;
- Request individuals to complete surveys about our organization, organizations we partner with, and Services;
- For marketing and advertising purposes, including to market to you or offer you through email or direct mail, information and updates on products or services we think that you may be interested in;
- Administer, improve and personalize our Services, including by recognizing an individual and remembering their information when they return to our Services;
- Identify and analyze how individuals use our Services, and to improve and customize our Services to address the needs and interests of our user base and other individuals we interact with;
- Test, enhance, update and monitor the Services, or diagnose or fix technology problems;
- Help maintain the safety, security and integrity of our property and Services, technology assets and business;
- To enforce our agreements, to resolve disputes, to carry out our obligations and enforce our rights, and to protect our business interests and the interests and rights of third parties;
- To fulfill any other purpose for which you provide personal information and or any other lawful purpose, or other purpose that you consent to.

  Where you choose to contact us, we may need additional information to fulfill the request or respond to inquiries. We may provide you with additional privacy-related information where the scope of the inquiry/request and/or personal information we require fall outside the scope of this Privacy Notice. In that case, the additional privacy notice will govern how we may process the information provided at that time.

  UC San Diego Health's information management practices conform to the requirements of the Information Practices Act of 1977 (Civil Code Section 1798, et seq.), the Public Records Act (California Government Code Section 6250, et seq.), California Government Code Section 11015.5, and other applicable laws pertaining to information privacy.

  Any information acquired by the UC San Diego Health through the Sites is subject to the limitations set forth in the Information Practices Act. UC San Diego Health will not distribute or share electronically collected personal information (as defined in subdivision (d) of California Government Code Section 11015.5) about users to any third party without the permission of the user, except in narrow circumstances set forth in this Notice. UC San Diego Health will not sell any electronically collected personal information to any third party. Such electronically collected personal information is exempt from requests made pursuant to the California Public Records Act (Chapter 3.5 (commencing with Section 6250) of Division 7 of Title 1).

III. Our Disclosure of Personal Information

We may also share, transmit, disclose, grant access to, make available, and provide personal information with and to third parties, as follows:

- **Within UC San Diego Health**: We may share personal information with other hospitals or primary care networks that are part of the UC San Diego Health.
- **Marketing Providers:** We coordinate and share personal information with our marketing providers in order to communicate with individuals about the Services we make available.
- **Customer Service and Communication Providers:** We share personal information with third parties who assist us in providing our customer services and facilitating our communications with individuals that submit inquiries.
- **Other Service Providers:** In addition to the third parties identified above, we engage other third-party service providers that perform business or operational services for us or on our behalf, such as website hosting, infrastructure provisioning, IT services, analytics services, employment application-related services, payment processing services, and administrative services.
- **Survey Providers:** We share personal information with third parties who assist us in delivering our surveys and processing the responses.
- **Online Advertising Partners:** We may also share personal information with advertising networks or permit these partners to collect information from you directly on our websites to facilitate online advertising, such as search engines and social network advertising providers to serve targeted ads to you or to groups of other users who share similar traits, such as likely commercial interests and demographics, on third-party platforms. For more information, including how to opt out of interest-based advertising, please see the **Cookie Notice.**
- **Business Transaction or Reorganization:** We may take part in or be involved with a corporate business transaction, such as a merger, acquisition, joint venture, or financing or sale of assets. We may disclose personal information to a third party during negotiation of, in connection with or as an asset in such a corporate business transaction. Personal information may also be disclosed in the event of insolvency, bankruptcy or receivership.
- **Legal Obligations and Rights:** We may disclose personal information to third parties, such as legal advisors and law enforcement:
  - in connection with the establishment, exercise, or defense of legal claims;
  - to comply with laws or to respond to lawful requests and legal process;
  - to protect our rights and property and the rights and property of others, including to enforce our agreements and policies;
  - to detect, suppress, or prevent fraud;
  - to protect the health and safety of us and others; or
  - as otherwise required by applicable law.
- **With Your Consent:** We may disclose personal information about an individual to certain other third parties or publicly with your consent or direction. For example, with an individual's consent or direction we may post their testimonial on our Sites or service-related publications.

UC San Diego Health will not distribute or share "electronically collected personal information" (as defined in subdivision (d) of California Government Code Section 11015.5) about users to any third party without the permission of the user, except in narrow circumstances as set forth in this Privacy Notice, such as instances when authorized under law (including but not limited to the Information Practices Act), or to assist another state agency or public law enforcement organization in any case where the security of a network operated by a state agency has been, or is suspected of having been, breached. UC San Diego Health will not sell any electronically collected personal information to any third party. Such electronically collected personal information is exempt from requests made pursuant to the California Public Records Act (Chapter 3.5 (commencing with Section 6250) of Division 7 of Title 1).

IV. Control Over Your Information

You may control your information in the following ways:

- **Email Communications Preferences.** You can stop receiving promotional email communications from us by clicking on the "unsubscribe" link provided in such communications. You may not opt-out of service-related communications (e.g., account verification, transactional communications, changes/updates to features of the Services, technical and security notices).
- **Modifying or Deleting Your Information.** If you have any questions about reviewing, modifying, deleting or exercising your option of having your personal information discarded without reuse or distribution (pursuant to California Government Code section 11015.5), you can contact us directly by sending a written request to the postal or email address set out in the **Contact Us** section, below. We may not be able to modify or delete your information in all circumstances.

V. Children's Personal Information

Our Services are not directed to, and we do not intend to, or knowingly, collect or solicit personal information from children under the age of 16. If an individual is under the age of 16, they should not use our Services or otherwise provide us with any personal information either directly or by other means. If a child under the age of 16 has provided personal information to us, we encourage the child's parent or guardian to contact us to request that we remove the personal information from our systems. If we learn that any personal information we collect has been provided by a child under the age of 16, we will promptly delete that personal information.

VI. Links to Third-Party Websites or Services

Our Services may include links to third-party websites, plug-ins and applications. Except where we post, link to or expressly adopt or refer to this Privacy Notice, this Privacy Notice does not apply to, and we are not responsible for, any personal information practices of third-party websites and online services or the practices of other third parties. To learn about the personal information practices of third parties, please visit their respective privacy notices.

VII. Updates to This Privacy Notice

We may update this Privacy Notice from time to time. When we make changes to this Privacy Notice, we will change the date at the beginning of this Privacy Notice. If we make material changes to this Privacy Notice, we may notify individuals by email to their registered email address, by prominent posting on our Services, or through other appropriate communication channels. All changes shall be effective from the date of publication unless otherwise provided. We encourage you to review this Privacy Notice frequently to be informed of how we are processing your information.

VIII. Contact Us

If you have any questions or requests in connection with this Privacy Notice or other privacy-related matters, please contact us by using one of the following methods:

UC San Diego Health Sciences

Office of Compliance and Privacy

Compliance Help Line Telephone: (858) 657-7487

Compliance Help Line Email: hscomply@ucsd.edu

COOKIE NOTICE

Unless otherwise expressly stated, terms in this notice have the same meaning as defined in the **Privacy Notice**.

1. SCOPE OF NOTICE

This Cookie Notice supplements the information contained in the **Privacy Notice** and explains how we and our third-party partners and service providers use cookies and related technologies in the course of managing and providing our online services and our electronic communication to you. It explains what these technologies are and why we use them, as well as your rights to control our use of them. As noted in our **Privacy Notice**, this **Cookie Notice** does not apply to protected health information under HIPAA.

In some cases, we may use cookies and related technologies described in this Cookie Notice to collect personal information, or to collect information that becomes personal information if we combine it with other information. For more details about how we process your personal information, please review the **Privacy Notice**.

2. WHAT ARE COOKIES AND RELATED TECHNOLOGIES

As is common practice among websites, our Services use cookies, which are tiny files downloaded to your device that allow us and our third-party partners to collect certain information about your interactions with our email communications, websites and other online services, and that improve your experience. We and our third-party partners and providers may also use other, related technologies to collect this information, such as web beacons, pixels, embedded scripts, location-identifying technologies and logging technologies (collectively, "**cookies**").

We use the following types of cookies:

1. **Strictly necessary cookies**. These cookies enable core functionality such as security, network management and accessibility. You may disable these by changing your browser settings, but this may affect how the Services function. The legal basis for our use of strictly necessary cookies is our legitimate interests, namely being able to provide and maintain our Services.
2. **Functional cookies**. These enable a website to remember information that changes the way the website behaves or looks, like your preferred language or the region that you are in. The legal basis for our use of functionality cookies is our legitimate interests, namely being able to provide and maintain our Services.
3. **Analytical/performance cookies**. These cookies allow us to recognize and count the number of visitors to our Services, and to see how visitors move around our Services when they are using them. This helps us to improve the way our Services work, for example, by ensuring that users are finding what they are looking for easily.
4. **Targeting Cookies:** These cookies record your visit to our Services, the pages you have visited and the links you have followed. They are used to track visitors across our Services.

3. WHAT WE COLLECT WHEN USING COOKIES

We and our third-party partners and providers may use cookies to automatically collect certain types of usage information when you visit or interact with our email communications and Services. For example, we may collect log data about your device and its software, such as your IP address, operating system, browser type, date/time of your visit, and other similar information. Our emails may also contain tracking pixels that identify if and when you have opened an email that we have sent you, how many times you have read it and whether you have clicked on any links in that email. We may also collect analytics data or use third-party analytics tools to help us measure usage and activity trends for our online services and better understand the individuals using our services. We also may collect location data, including general geographic location based on IP address.

We may include or engage in the following as part of our Services:

- **Social Media Widgets**. Our Services may include social media features, such as the Facebook "Like" button, Pinterest, Instagram, Twitter or other widgets. These social media companies may recognize you and collect information about your visit to our Services, and they may set a cookie or employ other tracking technologies. Your interactions with those features are governed by the privacy policies of those companies.
- **Social Media Platforms.** We may display targeted advertising to you through social media platforms, such as Facebook, Twitter, Instagram, LinkedIn, and other social media forums. These companies have interest-based advertising programs that allow us to direct advertisements to users who have shown interest in our services while those users are on the social media platform, or to groups of other users who share similar traits, such as likely commercial interests and demographics. We may share a unique identifier, such as a user ID, with these platform providers or they may collect information from our website visitors through a first-party pixel, in order to direct targeted advertising to you or to a custom audience on the social media platform. These advertisements are governed by the privacy policies of those social media companies that provide them. If you do not want to receive targeted ads on your social networks, you may be able to adjust your advertising preferences through your settings on those networks.
- **Third Party Partners**. We work with a variety of third-party partners to provide analytics and advertising services. For example, we use Google Analytics to recognize you and link the devices you use when you visit our Services on your browser or mobile device, log in to your non-patient account on our Services (i.e., job applicant services), or otherwise engage with us. We may share a unique identifier, like a user ID, with Google to facilitate the service. Google Analytics allows us to better understand how our users interact with our Services and to tailor our advertisements and content to you. For information on how Google Analytics collects and processes data, as well as how you can control information sent to Google, review Google's website, "How Google uses data when you use our partners' sites or apps" located at https://www.google.com/policies/privacy/partners/ . You can learn about Google Analytics' currently available opt-outs, including the Google Analytics Browser Ad-On here: https://tools.google.com/dlpage/gaoptout/.

  We may also utilize certain forms of display advertising and other advanced features through Google Analytics. These features enable us to use first-party cookies (such as the Google Analytics cookie) and third-party cookies (such as the DoubleClick advertising cookie) or other third-party cookies together to inform, optimize, and display ads based on your past visits to the Services.

- You may control your advertising preferences or opt-out of certain Google advertising products by visiting the Google Ads Preferences Manager, currently available at https://google.com/ads/preferences, or by visiting NAI's online resources at https://thenai.org/.

4. HOW WE USE INFORMATION COLLECTED VIA COOKIES

We use cookies for a variety of reasons outlined below:

- If you create a non-patient account with us (such as to apply for a job), we will use cookies for the management of the signup process and general administration. These cookies will usually be deleted when you log out; however, in some cases, they may remain in order to remember your site preferences when logged out.
- The Services may offer payment capabilities and some cookies are essential to ensure that your order is remembered between pages so that we can process it properly.
- When you submit data through a form, such as those found on the contact pages, cookies may be set to remember your user details for future correspondence.
- In order to provide you with a great experience on the Services, we provide the functionality to set your preferences for how the Services run when you use it. In order to remember your preferences, we need to set cookies so that this information can be called whenever you interact with a website page.
- We use cookies to provide and monitor the effectiveness of our Services, monitor online usage and activities of our Services, and facilitate the purposes identified in the **How We Use Your Personal Information** section of our Privacy Notice.
- We may also use the information we collect through cookies to understand your browsing activities, including across unaffiliated third-party sites, so that we can deliver information about products and services that may be of interest to you.
- Tracking technology used in emails helps us measure the effectiveness of our marketing email campaigns, make the emails we send to you more relevant to your interests and help us understand if you have opened and how you interacted with our email.

  Please note that we link some of the personal information we collect through cookies with the other personal information that we collect about you and for the purposes described in our **Privacy Notice**.

  Note UC San Diego Health will not distribute or share "electronically collected personal information" (as defined in subdivision (d) of California Government Code Section 11015.5) about users to any third party without the permission of the user, except in narrow circumstances as set forth in our Privacy Notice. UC San Diego Health will not sell any electronically collected personal information to any third party.

5. YOUR CHOICES ABOUT COOKIES

If you would prefer not to accept cookies, most browsers will allow you to change the setting of cookies by adjusting the settings on your browser to: (i) notify you when you receive a cookie, which lets you choose whether or not to accept it; (ii) disable existing cookies; or (iii) set your browser to automatically reject cookies. Be aware that disabling cookies may negatively affect the functionality of this and many other websites that you visit. Disabling cookies will usually result in also disabling certain functionalities and features of the Services.

Depending on your device and operating system, you may not be able to delete or block all cookies. In addition, if you want to reject cookies across all your browsers and devices, you will need to do so on each browser on each device you actively use. These settings will typically be found in the "options" or "preferences" menu of your browser. In order to understand these settings, the following links may be helpful, otherwise you should use the "Help" option in your browser for more details.

Cookie settings in Internet Explorer

Cookie settings in Firefox

Cookie settings in Chrome

Cookies settings in Safari web and iOS

You may also set your email options to prevent the automatic downloading of images that may contain technologies that would allow us to know whether you have accessed our email and performed certain functions with it.

If you would like to find out more about cookies and other similar technologies, please visit https://www.allaboutcookies.org. or the Network Advertising Initiative's online sources at https://optout.networkadvertising.org.

COVID-19 Information

Contact Us

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Policies and Notices

Privacy Policy

Accessibility Statement

Legal Notices

Language Assistance

UC San Diego

n Diego School of Medicine